



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2025-029

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-015 2025 Moratorium on Funding for Existing Tribally Owned Corporations.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On August 09, 2025, the Legislature passed a Bill entitled, "2025 Moratorium on Funding for Existing Tribally Owned Corporations." (Resolution KL-CY-2025-015); and,

WHEREAS, On August 20th, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-015 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-015 2025 Moratorium on Funding for Existing Tribally Owned Corporations.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2025-029 was duly voted and approved upon by the Legislature on September 13, 2025, at a Legislative Regular Session CI-(101) with a vote of (7) in favor and (0) opposed, (0) abstaining, and (0) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2025-029

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			

KIOWA TRIBE RESOLUTION NUMBER KY-CY-2025-015

STATEMENT BY THE LEGISLATURE REGARDING VETO OVERRIDE

The Chairman's veto contends that the Legislature does not have the power "to issue a moratorium on funding existing tribally owned corporations." However, the Constitution restricts the Chairman's power to spend money by providing that:

Monies that have been appropriated by law shall not be drawn from the Treasury except by signature of the Chairman and any other executive officers subordinate to the Chairman as required by Law. No expenditure shall be made unless included in an approved budget.

Art. VII, Sec. 4(a). This is consistent with the powers granted to the Legislature:

Every funding item in the annual budget must have been previously authorized by law. No monies shall be drawn from the Treasury except by signature of the Chairman and except upon authorization and appropriation of law.

Art. VI Sec. 6(b)(v). Here, the moratorium legislation is providing that no expenditures related to Tribally Owned Corporation are authorized by law at this time. This is a valid exercise of legislative power. This is not an attempt to "manage" the Tribe's business enterprises, but a valid exercise of the Legislature's oversight authority.

Looking to the practical matters raised by the veto, the Chairman only alleges that: (1) the legislation is based on speculation of wrongdoing; and (2) a fear that the legislation would create some sort of "ill-advised adverse effect" on ongoing business relations. Regarding the first issue, the Legislature made clear the concerns it was acting on in the text of the legislation and the debate leading up to the vote. Then, regarding the "ill-advised adverse effect" concern, the Chairman only alleges that the lack of funding could impact the viability of the corporations and potentially cause the corporation to default on outstanding contracts. These concerns are misplaced because the Chairman has publicly stated that these Tribally Owned Corporations are not currently in operation or using tribal funds.